



THE CITY OF NEW YORK
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

MICHAEL A. CARDOZO
Corporation Counsel

PORSHA JOHNSON
Assistant Corporation Counsel
Phone: (212) 788-0424
Fax: (212) 788-9776
pojohnso@law.nyc.gov

November 7, 2012

By ECF

Honorable Nicholas G. Garaufis
United States District Judge
Eastern District of New York
225 Cadman Plaza East
Brooklyn, New York 11201

Re: Steeve Paul v. City of New York et al.
12 CV 250 (NGG)(RER)

Your Honor:

I am an Assistant Corporation Counsel in the office of Michael A. Cardozo, Corporation Counsel of the City of New York, attorneys for the defendants in the above-referenced matter. Attached, please find a duly executed Stipulation and Order of Settlement and Dismissal for your Honor's endorsement and filing.

Thank you for your consideration.

Respectfully submitted,

A handwritten signature in cursive script, appearing to read "Porsha Johnson".

Porsha Johnson
Assistant Corporation Counsel

cc: Ugo Uzoh, Esq.
Attorney for Plaintiff

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
STEEVE PAUL

Plaintiffs,

-against-

**STIPULATION OF
SETTLEMENT AND ORDER
OF DISMISSAL**

THE CITY OF NEW YORK, P.O. ELVIS ALCIVAR
(SHIELD #29226), P.O. JAMES HANSON [SHIELD
#23162], SERGEANT CYNTHIA LAGARES [SHIELD
#7400], P.O. MICHAEL FODER [Shield #17145], AND
MARGARITA NACHEVNIK,

12 CV 250 (NGG)(RER)

Defendants,
----- X

WHEREAS, plaintiff, Steeve Paul, commenced this action by filing a complaint on or about January 19, 2012, an amended complaint on March 6, 2012, a second amended complaint on May 2, 2012, and a third amended complaint on July 6, 2012, alleging that the defendants violated plaintiff's federal civil rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiffs' allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiffs have authorized their counsel to agree to the terms set forth below; and

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, City of New York, Elvis Alcivar, James Hanson, Cynthia Lagares, Michael Foder and Margarita Nachevnik

with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff Steeve Paul the sum of Ten Thousand Dollars (\$10,000), in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to the dismissal of all the claims against the defendants and to release the defendants and any present or former employees and agents of the City of New York or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiff's civil rights, from the beginning of the world to the date of the General Release, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, General Releases based on the terms of paragraph 2 above and Affidavits of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26.

4. Plaintiffs agree to hold harmless the City of New York regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check, naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

5. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

6. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: Brooklyn, New York
10/19, 2012

UGO UZOH, P.C.
304 Livingston Street, Suite 2R
Brooklyn, NY 11217

By: 
UGOGOCHUKWU UZOH

Dated: New York, New York
11/7, 2012

MICHAEL A. CARDOZO
Corporation Counsel
Attorney for Defendants
100 Church Street
New York, New York 10007

By: 
PORSHA JOHNSON
Assistant Corporation Counsel

SO ORDERED:

Dated: New York, New York
_____, 2012

HON. NICHOLAS G. GARAUFIS
UNITED STATES DISTRICT JUDGE